

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----
MICEAL NISIMOV,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
THOMAS ENDERS, Tax No. [REDACTED] OF THE
107TH PCT, AND "JOHN DOES 1-10," PERSONS
EMPLOYED BY THE CITY OF NEW YORK,Defendants.

X

SUMMONS

:

Index No.: _____

:

Date Filed: _____

:

Plaintiff designates

:

Richmond County
as the place of trial

:

The basis of venue is based on
CPLR § 504(3)

:

X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
November 1, 2019

Scott Kim, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
MICEAL NISIMOV
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7203-LK

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2018PI030797, 100 Church Street, New York, NY 10007
NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10038
POLICE OFFICER THOMAS ENDERS, Tax No. [REDACTED] OF THE 107TH PCT, 7101 Parsons
Blvd., Flushing, NY 11365

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CITY OF NEW YORK, NEW YORK CITY
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THOMAS ENDERS, Tax No. [REDACTED] OF THE
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X

VERIFIED COMPLIANT

Index No.:

X

MICEAL NISIMOV (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN, LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER THOMAS ENDERS, Tax No. [REDACTED] OF THE 107TH PCT. AND "JOHN DOES 1-10," PERSONS EMPLOYED BY THE CITY OF NEW YORK. (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of Queens County, City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the "City") was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the New York City Police Department (hereinafter "NYPD") was and is an agency of Defendant City.

5. At all relevant times, Defendant City operated, controlled and managed the NYPD.

6. At all relevant times, Defendant THOMAS ENDERS, Tax Number [REDACTED] of the NYPD 107th Precinct (hereinafter "P.O. Enders") was an officer, agent, and/or employee of Defendant City.

7. At all relevant times, the names of Defendants "JOHN DOES 1-10" (hereinafter the "Officers") are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the arrest of Plaintiff and violated Plaintiff's rights, whose names are presently unknown to Plaintiff.

8. At all relevant times, Defendant Officers were officers, agents and/or employees of Defendant City.

9. At all relevant times, Defendants P.O. Enders and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

10. At all relevant times, Defendants were involved in violating Plaintiff's rights, and individuals who acted in concert with them to do so, acted or failed to act, as alleged herein, toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules, and/or usage of the State and City of New York, and within the scope of their employment.

11. Defendants P.O. Enders and Officers are sued herein in both their individual and official capacities.

FACTS

13. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

14. Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law Section 50-e and 50-I on or about October 30, 2018. The Notice of Claim set forth the name and address of Plaintiff, his attorneys the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

15. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

16. A General Municipal Law Section 50-h hearing was held on or about January 30, 2019.

17. This action is being commenced within one year of the dates of which all claims accrued.

18. Plaintiff has complied with all conditions precedent to maintain this action.

19. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Incident of August 7, 2018

20. On or about August 7, 2018, at or near Union Turnpike and 150th Street, in the County of Queens, City and State of New York at approximately 10:30 p.m., Plaintiff was wrongfully and unlawfully searched, seized, detained, and arrested by Defendants, their agents, servants, and/or employees, without probable cause or justification, causing Plaintiff to be unlawfully detained for a period of approximately ten (10) hours (hereinafter the "Arrest").

21. At the time of the subject arrest, Plaintiff, then a 23 year old male, was assaulted by an individual claiming to be a law enforcement official following a motor vehicle accident caused by said assailant.

22. Plaintiff called 911 reporting the assault, stating in sum and substance, "A police officer assaulted me."

23. Defendants P.O. Enders and Officers arrived on the scene. Defendants observed and spoke with Plaintiff and learned that he was the victim of the assault. Thereafter, Plaintiff was wrongfully arrested and detained by Defendants P.O. Enders and Officers at the 107th Precinct without cause or justification until his subsequent release. No charges were brought against him.

24. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to, the rights of Plaintiff.

25. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of the failure of Defendant City to properly hire, train, supervise, monitor, and discipline its officers, agents, employees and/or contractors.

26. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of policies, practices, and customs developed, implemented, enforced, encouraged, sanctioned, or tolerated by Defendant City.

27. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical, and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

28. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

STATE CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR FALSE ARREST AND IMPRISONMENT

29. The allegations set forth in paragraphs "1" through "28" inclusive are incorporated herein as if fully set forth.

30. Defendants P.O. Enders and Officers intended to cause the wrongful and unlawful arrest and detention of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

31. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of his liberty, and caused him to be taken into police custody, and charged with crimes he did not commit.

32. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful arrest and imprisonment of Plaintiff.

33. Plaintiff was aware of such confinement by Defendants and did not consent to said confinement.

34. The aforementioned confinement was not privileged in any way and was without legal justification.

35. Plaintiff was thereafter caused to be incarcerated for approximately ten (10) hours.

36. Defendant City is responsible and liable for the acts of Defendants P.O. Enders and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

37. As a direct and proximate cause of Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

38. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT/INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS

39. The allegations set forth in paragraphs "1" through "38" inclusive are incorporated herein as if fully set forth.

40. Defendants P.O. Enders and Officers engaged in extreme and outrageous conduct throughout the course of the Arrest of Plaintiff.

41. Defendants P.O. Enders and Officers caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

42. Defendants P.O. Enders and Officers knew, or should have known, that the extreme and outrageous conduct engaged in would result in injury to Plaintiff.

43. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

44. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or in disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

45. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress which had a disabling effect on Plaintiff.

46. Defendant City is responsible for and liable for the acts of Defendants P.O. Enders and Officers done within the scope of their employment through the doctrine of *respondeat superior*.

47. As a direct and proximate cause of Defendants' intentional infliction of emotional distress on Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

48. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

49. The allegations set forth in paragraphs "1" through "48" inclusive are incorporated herein as if fully set forth.

50. That Defendant City failed to exercise reasonable care in hiring, training, retaining, and supervising Defendants P.O. Enders and Officers, thereby breaching its duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising employees.

51. That Defendant City was aware of and should have known of the propensity of Defendants P.O. Enders and Officers to commit injurious acts.

52. That Defendant City was negligent in failing to properly train and supervise its employees, more specifically Defendants P.O. Enders and Officers.

53. Defendant City is responsible and liable for the acts of Defendants P.O. Enders and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

54. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

55. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGASINT ALL DEFENDANTS FOR
NEGLIGENCE/GROSS NEGLIGENCE

56. The allegations set forth in paragraphs "1" through "55" inclusive are incorporated herein as if fully set forth.

57. Defendants' acts and/or omissions in causing the aforesaid false arrest and imprisonment, negligent hiring, retention, training, and supervision of its employees, officers, agents, and/or contractors, and negligent infliction of emotion distress were in breach of the duty of due care owed to Plaintiff.

58. Defendants P.O. Enders and Officers acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendants P.O. Enders and Officers further breached their duty of care to investigate before affecting the seizure of a citizen.

59. That Defendant City is responsible and liable for the acts of Defendants P.O. Enders and Officers done within the scope of their employment under the doctrine of *respondeat superior*.

60. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

61. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
MUNICIPAL LIABILITY "MONELL" CLAIM

62. The allegations set forth in paragraphs "1" through "61" inclusive are incorporated herein as if fully set forth.

63. Defendants P.O. Enders and Officers, individually and collectively, within the scope of their employment and authority and under color of State Law, engaged in conduct which constituted customs, policies, procedures, rules, or usages of the City and which were in violation of the rights, privileges, and immunities of Plaintiff, a citizen of the United States and resident of the State of New York, as secured by the United States Constitution.

64. The aforesaid customs, policies, procedures, rules, or usages included but were not limited to: failure to properly investigate before effecting an arrest; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; and failure to intervene when employees, officers, agents, and/or contractors violate well-established statutory and constitutional rights.

65. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject Arrest rendering Defendant City liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658/91978), and under 42 U.S.C. § 1983.

66. The aforesaid conduct was consistent with the institutionalized practices of the NYPD which were known and previously sanctioned by Defendant City.

67. Despite knowledge of the institutionalized practices of the NYPD, Defendant City took no effective actions to end or prevent such practices.

68. Defendant City had prior notice of the injurious actions and practices of Defendants P.O. Enders and Officers but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

69. Defendant City had prior notice that Defendants P.O. Enders and Officers had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, Departmental policy, and other applicable laws and federal and state statutory and constitutional

protections, but took no effective actions to ensure that he aforesaid Defendants were provided with adequate or appropriate training.

70. Defendant City authorized, tolerated, and ratified the misconduct of employees, officers, agents, and/or contractors, and of Defendants P.O. Enders and Officers, specifically by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, agents; and failing to establish and maintain a meaningful system for responding to complaint of misconduct, all of which constitute deliberate indifference by Defendant City to Plaintiff's rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

71. As a direct and proximate cause of Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

72. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant City liable to Plaintiff for punitive damages.

AS AND FOR AN SIXTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
VIOLATION OF PLAINTIFF'S STATUTORY
AND CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983

73. The allegations set forth in paragraphs "1" through "72" inclusive are incorporated herein as if fully set forth.

74. As a direct result of the acts, omissions, and policies of Defendants acting under the color of State Law caused Plaintiff, a citizen of the United States and resident of the State of

New York, to be deprived of his rights, privileges, and immunities guaranteed under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution and 42 U.S.C. § 1983.

75. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from illegal search and seizure;
- b. Freedom from false arrest;
- c. Freedom from unlawful imprisonment; and
- d. Freedom from loss of liberty.

76. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

77. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under Article 1, Section 8 and Section 12 of the New York Constitution.

78. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York Common Law to be free from false arrest, false imprisonment, assault and battery, intentional infliction of emotional distress, malicious prosecution, and other injuries.

79. As a direct and proximate cause of Defendants' violations of Plaintiff's statutory and constitutional rights protected under 42 U.S.C. § 1983, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

80. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER THOMAS ENDERS, Tax No. [REDACTED] OF THE 107TH PCT, AND "JOHN DOES 1-10," PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
November 1, 2019



Scott Kim, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
MICEAL NISIMOV
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7203-LK

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
November 1, 2019



Scott Kim, Esq.